March 14, 2025

Mr. Kirk Dohne
Acting Director, National Coordination Office
Networking and Information Technology Research and Development Program (NITRD)
White House Office of Science and Technology Policy
Washington DC, 20024

Dear Acting Director Dohne:

On behalf of the Healthcare Information and Management Systems Society (HIMSS), we are pleased to provide public comments on Networking and Information Technology Research and Development (NITRD) National Coordination Office (NCO) and the National Science Foundation [Request for Information on the Development of an Artificial Intelligence (AI) Action Plan].

HIMSS is a global advisor and thought leader and member-based society committed to reforming the global health ecosystem through the power of information and technology. As a mission-driven non-profit, HIMSS offers a unique depth and breadth of expertise in health innovation, public policy, workforce development, research, and analytics to advise global leaders, developers, end users, patients, and influencers on best practices in health information and technology driven by health equity. Through our innovation engine, HIMSS delivers key insights, education and engaging events to healthcare providers, governments, and market suppliers, ensuring they have the right information at the point of decision. HIMSS serves the global health information and technology communities with focused operations across North America, Europe, the United Kingdom, the Middle East, and Asia Pacific. Our members include more than 127,000 individuals, 480 provider organizations, 470 non-profit partners, and 650 health services organizations. Our global headquarters is in Rotterdam, The Netherlands and our Americas headquarters is in Chicago, Illinois.

To accelerate digital health transformation, we must foster seamless, secure, ubiquitous, and systemwide data access and interoperable health information exchange. Interoperable data exchange ensures the right people have the right access to the right health information in a usable format at the right time to deliver optimal care. Health information and technology serve as the catalyst for transforming the health ecosystem, modernizing care delivery, driving health innovation, lowering costs, improving efficiency, and enabling health research.

Artificial intelligence (AI) drives numerous applications that offer the potential to improve patient outcomes, accelerate early detection of disease, and enhance point of care and administrative efficiency. AI also has the potential to promote embedded biases and inaccuracies in our healthcare data. AI tools are positioned to drive innovation and digital transformation. Policies and regulatory frameworks should find a balance that promotes and accelerates the responsible deployment and use of safe and trusted AI demonstrated to benefit stakeholders in the health and human services sector while ensuring that AI is continually monitored and revalidated following deployment in the field.

Specifically, the OSTP AI Action Plan should consider the following principles for AI deployed and utilized in the health and human services sector. Many of these principles are reflected in HIMSS Global Artificial Intelligence Policy Principles.

- The leadership group responsible for the development of the AI Action Plan should include representation of the healthcare and digital health sector in the United States.

- Policy frameworks for the use of AI in the health and human services sector should have guardrails which consider the unique use cases and risks associated with patient safety.

- OSTP should adopt a risk-based regulatory approach that weighs the different intended uses, risk levels, types (generative or adaptive) and potential impacts on patients of AI when establishing requirements impacting the development and monitoring post-deployment of AI.

- Policy frameworks should focus on the development, initial deployment, and the evolution of AI once the tools have been deployed and evolve as they ingest data.

- For the development of AI used in the health and human services sector, policy frameworks should ensure appropriate feasibility and safety testing during the development cycle of AI tools and models to ensure the AI will produce comparable and consistent results against intended outcomes in all appropriate settings. The development cycle processes should monitor and test to ensure that the model isn't perpetuating harmful biases.

- Following the development of AI for use in the health and human services sector, policy frameworks should require appropriate explainability of AI tools on an ongoing basis by providing clinicians with sufficient and ongoing evidence of fair and robust performance so they can make informed decisions about adopting AI in their setting of care. HIMSS encourages OSTP to convene clinician leaders to determine what information is needed for explainability by providers to make informed decisions for adopting and user AI tools. What will be required for "explainability" will adjust as health systems increase the sophistication of their understanding of AI performance as time moves forward and the government framework should have the flexibility to evolve as the knowledge base of end-users grows.

- Following the implementation of AI in hospitals, provider practices, and other care settings, policy frameworks should require thoughtful action and monitoring by all parties, from market suppliers to hospitals and providers to ensure AI solutions are generating appropriate outputs that do not put patients at risk.

Policy should require the use of technologies including AI tools to evaluate and monitor the performance of the AI model and provide feedback to the developers (foundation model developers and developers/tools that incorporate the foundational model) and end-users of the AI tool to indicate if the AI outputs are drifting from the intended outputs.

Unless an organization has a clear analytics strategy, as required for a Stage 7 designation on HIMSS Analytics Maturity Adoption Model and a team with the competencies to assess safety, accuracy, and appropriate use of AI, then the organization should carefully consider not adopting technologies they cannot safely manage. HIMSS acknowledges that the workforce in many healthcare organizations does not have these competencies at the present time. HIMSS recommends the Administration invest in appropriate workforce training to ensure that healthcare organizations have the competencies to safely manage and monitor emerging AI tools and models to improve efficiency and drive better care outcomes.

- The framework should require that AI data governance and stewardship models are developed and regularly updated to promote the authorized use and disclosure of data. The framework should account for use case fidelity and model development, monitoring, and operations. Data governance and stewardship models should incorporate guidelines for appropriate data-sharing nation-wide and consider the varying data protection laws across countries. For healthcare, HIMSS believes the Health Insurance Portability and Accountability Act (HIPAA) of 1996, and subsequent updates cover privacy, disclosure, and consent standards that should be applied to evolving AI technologies. Accompanying standards should support the capacity of individuals to restrict the sharing of personal confidential information.

- The framework should facilitate the consensus-based development and harmonization of standards to ensure AI technologies can appropriately exchange data and learning across different healthcare systems using different technologies and be safely integrated the exchanged information into existing clinician workflows. Standards should be promulgated through the regulatory process to ensure consistent adoption by software developers.

- The framework should require that AI data governance and stewardship models are developed and regularly updated to promote the authorized use and disclosure of data. The framework should account for use case fidelity and model development, monitoring, and operations. Data governance and stewardship models should incorporate guidelines for national data-sharing and consider the varying data protection laws across countries.

- The framework should support adding the skillsets and knowledge needed for a clinical and IT support workforce focused on testing, monitoring, and revalidating AI following deployment in the field.

- AI that is utilized to determine access to healthcare benefits should not restrict access based on protected characteristics, including but not limited to:

    - people with limited English proficiency
    - people of ethnic, cultural, racial, or religious minorities
    - people with disabilities
    - people who identify as lesbian, gay, bisexual, or other diverse sexual orientations
    - people who identify as transgender and other diverse gender identities
    - people living in rural communities
    - people otherwise adversely affected by persistent poverty or inequality

As OSTP considers how the Federal government can promote the innovation and safe use of AI, we strongly encourage the inclusion of these healthcare sector-specific recommendations. Please feel free to contact Jonathan French, Senior Director of Public Policy and Content Development, at [redacted] with questions or to request more information.

Sincerely,

Thomas M. Leary, FHIMSS
Senior Vice President and Head of Government Relations